

## **CONFIDENTIAL INFORMATION AND INVENTION ASSIGNMENT AGREEMENT**

### **iLaunchify, Inc.**

This Confidential Information and Invention Assignment Agreement (this "Agreement") is entered into as of [DATE OF INCORPORATION] by and between iLaunchify, Inc., a Delaware corporation (the "Company"), and Simona Simeonova-Georgieva ("I" or "me").

In consideration of my service relationship with the Company, the issuance to me of shares of the Company's Common Stock, the compensation now and hereafter paid to me, and the Company's disclosure to me of its Confidential Information, I agree as follows:

#### **1. SERVICES AND AT-WILL RELATIONSHIP**

**1.1 Relationship.** This Agreement applies to my service to the Company in any capacity, including as a founder, officer, director, employee, consultant or contractor, and applies to work performed both before and after the date of this Agreement.

**1.2 At-Will.** I understand and agree that my employment or service relationship with the Company is at-will, meaning that either I or the Company may terminate the relationship at any time, with or without cause and with or without notice. Nothing in this Agreement creates a contract of employment for any specific period.

#### **2. CONFIDENTIAL INFORMATION**

**2.1 Definition.** "Confidential Information" means any and all non-public information, in any form, relating to the business, products, services, research or development of the Company or its partners, customers, suppliers or affiliates, including without limitation: source code, algorithms, architecture, data models and schemas; product designs, die-lines, artwork and packaging specifications; pricing models, fee structures, margins, and routing or allocation logic; partner, manufacturer, printer and fulfillment relationships and terms; creator and customer lists and data; formulations, recipes, ingredient specifications and label data; business plans, forecasts, financial information and cap table information; marketing plans; and any information received by the Company from third parties under an obligation of confidentiality.

**2.2 Non-Disclosure and Non-Use.** At all times during and after my service relationship with the Company, I will hold all Confidential Information in strictest confidence, will not use it except for the benefit of the Company, and will not disclose it to any person or entity without the prior written authorization of the Board of Directors, except as required in the ordinary course of performing my duties for the Company.

**2.3 Exclusions.** Confidential Information does not include information that: (a) is or becomes generally known to the public other than through my act or omission; (b) was rightfully in my possession without obligation of confidentiality prior to disclosure by the Company; or (c) is rightfully received by me from a third party without breach of any obligation of confidentiality.

**2.4 Third Party Information.** I recognize that the Company has received and will receive confidential or proprietary information from third parties subject to a duty to maintain its confidentiality. I will hold all such information in confidence and will not disclose or use it except as permitted by the Company's agreement with such third party.

**2.5 Prior Employer Information.** I will not improperly use or disclose any confidential information or trade secrets of any former or current employer or other person to whom I have an obligation of confidentiality, and I will not bring onto the premises of the Company or introduce into the Company's systems or codebase any unpublished document or proprietary information belonging to any such person unless consented to in writing by that person.

**2.6 Permitted Disclosures; Defend Trade Secrets Act Notice.** Nothing in this Agreement prohibits me from reporting possible violations of law to any governmental agency or from participating in any governmental investigation, or from making any disclosure protected by law. I am hereby notified, in accordance with 18 U.S.C. Section 1833(b), that an individual shall not be held criminally or civilly liable under any federal or state trade secret law for the disclosure of a trade secret that is made (i) in confidence to a federal, state or local government official, either directly or indirectly, or to an attorney, solely for the purpose of reporting or investigating a suspected violation of law, or (ii) in a complaint or other document filed in a lawsuit or other proceeding, if such filing is made under seal.

### **3. OWNERSHIP OF INVENTIONS**

**3.1 Definition.** "Inventions" means any and all inventions, discoveries, developments, concepts, ideas, improvements, designs, works of authorship, software, source code, object code, algorithms, models, data, databases, processes, methods, techniques, formulas, mask works, trademarks, service marks, trade dress, domain names, and trade secrets, whether or not patentable or registrable under patent, copyright or similar laws, and whether or not reduced to practice.

**3.2 Assignment.** I hereby irrevocably assign, transfer and convey to the Company, and agree to assign to the Company, my entire right, title and interest worldwide in and to any and all Inventions that I may solely or jointly conceive, develop or reduce to practice, or cause to be conceived, developed or reduced to practice, (a) during the period of my service relationship with the Company, or (b) prior to the date of this Agreement, in each case that relate to the actual or anticipated business, products, services, research or development of the Company or that result from work performed by me for or on behalf of the Company (collectively, "Company Inventions").

**3.3 Pre-Formation Work.** Without limiting Section 3.2, I specifically acknowledge that I performed work relating to the business of the Company prior to the Company's incorporation, including the design, development and authorship of software, designs, documentation, brand assets and other materials. All right, title and interest in and to all such work product is hereby irrevocably assigned to the Company as of the date of the Company's incorporation, and I agree to execute any additional documents reasonably requested to evidence and perfect such assignment.

**3.4 Works Made for Hire.** I acknowledge that all original works of authorship made by me within the scope of my service relationship with the Company and which are protectable by copyright are "works made for hire" as defined in the United States Copyright Act. To the extent any such work is determined not to be a work made for hire, I hereby assign all right, title and interest in such work to the Company.

**3.5 Moral Rights.** To the extent permitted by applicable law, I hereby waive and agree not to assert any and all moral rights, rights of attribution, rights of integrity and similar rights I may have in any Company Invention, and I consent to any action of the Company that would otherwise violate such rights.

**3.6 Prior Inventions.** I have set forth on Exhibit A a complete list of all Inventions that I made prior to the commencement of my relationship with the Company, that belong solely to me or jointly to me and others, that relate in any way to the Company's business or proposed business, and that are not being assigned to the Company ("Prior Inventions"). If no such list is attached or Exhibit A is left blank, I represent that there are no Prior Inventions. If, in the course of my service to the Company, I incorporate any Prior Invention into a Company product, service or process, I hereby grant to the Company a nonexclusive, royalty-free, irrevocable, perpetual, worldwide, sublicensable license to make, have made, modify, use, sell, offer for sale, import and otherwise exploit such Prior Invention as part of or in connection with such product, service or process.

**3.7 Records and Disclosure.** I will keep and maintain adequate and current records of all Company Inventions, which records shall be the sole property of the Company, and I will promptly disclose all Company Inventions to the Board of Directors.

**3.8 Further Assurances; Attorney-in-Fact.** I will assist the Company, at its expense, in every proper way to secure, perfect, register and enforce the Company's rights in Company Inventions in any and all countries, including by executing all applications, assignments and other instruments the Company may deem necessary. If the Company is unable, after reasonable effort, to secure my signature on any such document, I hereby irrevocably designate and appoint the Company and its duly authorized officers as my agent and attorney-in-fact, coupled with an interest, to act for and on my behalf to execute and file any such document and to do all other lawfully permitted acts to further the foregoing purposes.

#### **4. RETURN OF COMPANY PROPERTY**

Upon termination of my service relationship with the Company, or at any earlier time upon the Company's request, I will promptly deliver to the Company all documents, records, data, devices, credentials, keys, access tokens, source code repositories, design files and other property belonging to the Company or containing Confidential Information, and will permanently delete any Company data in my personal possession or accounts, other than copies I am required to retain by law.

#### **5. NON-SOLICITATION**

**5.1 Personnel.** During the period of my service relationship with the Company and for twelve (12) months thereafter, I will not directly or indirectly solicit, induce or attempt to induce any employee, contractor or consultant of the Company to terminate his or her relationship with the Company. A general advertisement not specifically targeted at Company personnel shall not constitute solicitation.

**5.2 No Non-Competition Covenant.** For the avoidance of doubt, this Agreement contains no covenant not to compete, and nothing in this Agreement restricts my ability to work for any other person or entity following the termination of my service relationship with the Company, subject to my continuing obligations regarding Confidential Information and Inventions.

**5.3 Reasonableness and Reformation.** I acknowledge that the restrictions in this Section 5 are reasonable in scope and duration and are necessary to protect the Company's legitimate business interests. If any restriction is held to be unenforceable, the parties intend that a court shall modify such restriction to the

minimum extent necessary to render it enforceable, in accordance with the Georgia Restrictive Covenants Act, O.C.G.A. Section 13-8-50 et seq., or such other law as may govern.

## **6. REPRESENTATIONS**

**6.1 No Conflicting Obligations.** I represent that my performance of all terms of this Agreement and my service to the Company do not and will not breach any agreement to keep in confidence information acquired by me prior to my relationship with the Company, and do not and will not conflict with or breach any agreement with any former employer or other party, including any assignment-of-inventions, confidentiality, non-solicitation or non-competition agreement. I have not entered into, and will not enter into, any agreement in conflict with this Agreement.

**6.2 Notification.** I agree that the Company may notify any future employer or entity for whom I perform services of my obligations under this Agreement.

## **7. GENERAL PROVISIONS**

**7.1 Equitable Relief.** I acknowledge that a breach of this Agreement would cause irreparable harm to the Company for which monetary damages would be an inadequate remedy, and that the Company shall be entitled to seek specific performance and injunctive relief without the necessity of posting a bond, in addition to any other remedies available at law or in equity.

**7.2 Governing Law.** This Agreement shall be governed by the laws of the State of Georgia, without regard to its conflict of laws principles, except that any question concerning the internal affairs of the Company shall be governed by the laws of the State of Delaware.

**7.3 Entire Agreement; Amendment.** This Agreement, together with Exhibit A, sets forth the entire agreement between me and the Company relating to its subject matter and supersedes all prior discussions and agreements. No modification or waiver shall be effective unless in writing and signed by me and by a duly authorized officer or director of the Company.

**7.4 Severability.** If any provision of this Agreement is held invalid or unenforceable, that provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions shall remain in full force and effect.

**7.5 Survival.** My obligations under Sections 2, 3, 4, 5 and 7 shall survive the termination of my service relationship with the Company for any reason.

**7.6 Successors and Assigns.** This Agreement shall be binding upon my heirs, executors, administrators and legal representatives, and shall inure to the benefit of the Company and its successors and assigns.

**7.7 Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original.

**I HAVE READ THIS AGREEMENT CAREFULLY AND UNDERSTAND ITS TERMS. I HAVE COMPLETELY FILLED OUT EXHIBIT A, OR HAVE CONFIRMED THAT I HAVE NO PRIOR INVENTIONS TO DISCLOSE.**

Name: Simona Simeonova-Georgieva

Address: [ADDRESS]

Date: \_\_\_\_\_

**ACCEPTED AND AGREED:**

**iLaunchify, Inc.**

\_\_\_\_\_

Name: Pavel Georgiev

Title: Chief Executive Officer

Date: \_\_\_\_\_

**EXHIBIT A**  
**List of Prior Inventions**

List below any Inventions created by you before your relationship with the Company that relate to the Company's business and that you do NOT wish to assign to the Company. If there are none, check the box below.

☐ **No Prior Inventions. I have no Prior Inventions to disclose.**

☐ **The following Prior Inventions are excluded from this Agreement:**

| Title / Description | Date | Identifying Number or Brief Description of Rights |
|---------------------|------|---------------------------------------------------|
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*Note: describing an invention here does not guarantee it is excluded. Anything that relates to the Company's business and was developed with Company resources or for the Company's benefit may still belong to the Company. If you believe you own something material that the Company will use, raise it with counsel rather than relying on this exhibit alone.*

\_\_\_\_\_

Name: Simona Simeonova-Georgieva

Date: \_\_\_\_\_